



**NATO Support and
Procurement Agency
(NSPA)**

NATO UNCLASSIFIED

OPERATING INSTRUCTION (OI)

TERMS OF REFERENCE OF THE NSPA AWARD REVIEW AND DEBARMENT BOARD

NSPA OI 4200-09

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AMENDMENT RECORD

REVISION/AMENDMENT	PAGES	DATE OF ISSUE	REMARKS
Creation	13	14 August 2025	1 st issue
Revision No. 1	13	26 June 2025	Correction of missing reference in Paragraph 4.8.1
Revision No. 2	13	17 January 2025	Clarification of Paragraph 4.7.5(b) relating to sole source Multiple amendments under section 4.8 Modification of applicable timelines for the Award Review and Debarment Board to issue its final decision pursuant to Paragraph 4.11.1

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TERMS OF REFERENCE OF THE NSPA AWARD REVIEW AND DEBARMENT BOARD**1. REFERENCES**

- A. Agreement on the Status of the North Atlantic Treaty Organization, National Representatives and International Staff signed in Ottawa
- B. NSPO Regulation No. 4200 - Procurement Regulations
- C. NSPA OI 4200-01 - Procurement Operating Instruction
- D. NSPA OI 4200-02 - Sourcing for NSPA Procurement Operating Instruction
- E. NSPA OI 4200-06 - The Role of the Competition Advocate
- F. NSPA OI 4200-07 - Debarment Operating Instruction
- G. NSPA OI 4200-08 - Pre-Contract Award Complaints Procedure
- H. NSPA OI 4400-01 - NSPA Code of Conduct
- I. NSPA OP-P-4 - NSPA Supplier Code of Conduct

2. PURPOSE

An independent NSPA Award Review and Debarment Board (the "Board") is established to enhance the trust and confidence of stakeholders in NSPA decisions regarding source selection and contract awards. The Board is also established to review debarment decisions affecting suppliers alleged to have engaged in sanctionable practices in order to ensure that resources and funds entrusted to NSPA are used only for their intended purposes. The Board is competent to hear and make final decisions on appeals on the grounds listed in Paragraph 4.7 below.

3. SCOPE

This Operating Instruction contains the rules of procedure applicable to the Board.

4. GOVERNANCE, COMPOSITION AND OPERATION OF THE BOARD**4.1 Composition of the Board and Appointment of Members**

4.1.1 The Board shall be composed of five procurement and/or legal experts external to NSPA and appointed by the General Manager (GM) through a competitive selection process.

4.1.2 All members of the Board shall be nationals of NATO Member Nations.

4.1.3 As a transitional measure, the Board may operate with a more limited composition until all five members of the Board have been appointed.

4.1.4 Once all members of the Board are appointed, they shall hold a plenary meeting with the Secretariat and agree on any procedure not provided for under these rules.

4.1.5 The Board shall elect one President and one Vice-President. The President and the Vice-President shall be elected for a two-year term that can be renewed for one additional two-year term.

4.1.6 The President of the Board shall declare the opening and closing of each plenary meeting, direct the discussions in plenary meetings, ensure observance of these rules, accord the right to speak, put questions and announce decisions. The President shall rule on points of order and, subject to these rules, shall have complete control of the proceedings at any meeting.

4.1.7 The Vice-President shall act as President where the President is unable to perform their functions. When the Vice-President, acting in replacement of the President, is also unable to perform their own functions, a new officer shall be elected.

4.1.8 NSPA shall equip the Board with a Secretariat. The Secretariat shall be tasked with providing administrative support to the Board and manage the communications between the parties.

4.2 Panel Composition and Venue

4.2.1 All appeals before the Board shall be reviewed by a three-member panel and decided by majority decision.

4.2.2 The Board shall normally hold remote sessions and meet by using VTC equipment and facilities. Where *in situ* meetings are required, the Secretariat of the Board may convene a meeting at NSPA or another suitable location.

4.3 Eligibility for Appointment

To be eligible for appointment as a member of the Board, a person shall:

4.3.1 be of high moral character and impartial;

4.3.2 possess at least ten years of experience in the field of public law, international procurement, dispute settlement, arbitration or debarment.

4.3.3 be fluent in English (working knowledge of French is desirable).

4.4 Independence of the Board

4.4.1 A member of the Board shall be appointed for one non-renewable term of six years.

4.4.2 A member of the Board shall not be eligible for any appointment within NSPA for a period of two years following their term of office.

4.4.3 Former NSPA personnel are ineligible to apply for positions until at least two years have lapsed since their departure from NSPA.

4.4.4 Before accepting employment with any entity that has appeared before the Board within two years after separating from service, former Board members shall inform the Board's Secretariat of their intention in writing, providing all relevant information.

4.4.5 A member of the Board shall serve in their personal capacity and enjoy full independence.

4.4.6 A member of the Board who has, or appears to have, a conflict of interest shall recuse themselves from the case. Where a party to the proceedings requests such recusal, the decision shall be taken by the President of the Board.

4.4.7 In the case where a party to the proceedings requests the recusal of the President of the Board, due to a conflict of interest or the appearance of it, the decision shall be taken by a majority vote of the panel members, excluding the President of the Board who shall have no voting rights. In case of equal votes, recusal of the President will prevail.

4.4.8 In case of misconduct or incapacity, a member of the Board may only be removed by the decision of the GM upon confirmation by the other members of the Board.

4.4.9 A member of the Board may resign by notifying the GM in writing. The resignation shall take effect from the date of notification, unless the notice of resignation specifies a later date.

4.4.10 In case the member of the Board resigning is President or Vice-President, new elections will be held.

4.4.11 Members of the Board shall be considered Experts on Mission within the meaning of Article XXI of the 1951 Agreement on the status of the North Atlantic Treaty Organization, National Representatives and International Staff signed in Ottawa (Reference A).

4.5 Declaration of Impartiality

Before reviewing an appeal, the members of the Board called to decide on that specific dispute shall sign a Declaration of Impartiality and Confidentiality (Appendix I).

4.6 Remuneration of Board Members

4.6.1 All members of the Board shall be appointed as Consultants within the meaning of the NATO Civilian Personnel Regulations and shall be paid for each day of work (consisting of eight working hours) according to the rates applicable to consultants in the sense of the NATO Civilian Personnel Regulations (Chapter XVI). The expenses associated with the remuneration of the members of the Board in each appeal shall be borne by the appellant.¹

4.6.2 The combined fees of the Board members deciding on the Appeal in no circumstance can exceed the fees paid by the appellant.

4.6.3 Unless the required fees have been duly received from the appellant, the Secretariat shall not refer the appeal to the Board. Referral in the absence of payment would result in Board members performing their functions without the corresponding financial provision, contrary to the established framework governing their engagement and the NSPO Financial Rules and Procedures (NSPO Functional Directive No. 2300).

¹ As a customer-funded agency, NSPA cannot incur any expenses related to offering suppliers an additional opportunity to appeal NSPA decisions to an external body.

4.7 Jurisdiction and Grounds for Appeal

The Board shall be competent to hear and make final decisions on appeals:

4.7.1 in relation to unduly restrictive requirements of Requests for Proposals (RFPs) with an estimated value $\geq 800,000$ Euros;

4.7.2 in relation to determinations of commercial and/or technical non-compliance of a bidder's proposal with the requirements of the RFP in relation to contract awards whose value is $\geq 800,000$ Euros;

4.7.3 submitted by suppliers relating to the erroneous determination of the sole source character of a requirement relating to contracts with a value $\geq 800,000$ Euros;

4.7.4 against debarment of suppliers pursuant to the Debarment Operating Instruction (Reference F). The appeal against debarment of suppliers must be based on one or several of the following grounds:

a. NSPA breached the supplier's procedural rights by failing to give it an opportunity to respond to allegations or by failing to take into account exculpatory evidence;

b. NSPA made an error of fact in finding that the supplier had engaged in a sanctionable practice (see Paragraph 5.1 of Reference F);

c. NSPA made an error of law in determining that the alleged conduct qualified as sanctionable practice (see Paragraph 5.1 of Reference F).

4.7.5 The Board shall not be competent to hear appeals:

a. on grounds other than those listed in Paragraph 4.7.1 to Paragraph 4.7.4;

b. from individuals or entities that did not participate in the competitive solicitation process or, for appeals challenging a sole source determination pursuant to Paragraph 4.7.3, from individuals or entities that did not submit evidence of their capabilities in accordance with Article 6.3 of Reference C;

c. from individuals or entities that failed to submit their tender, bid or proposal before the specified closing date (unless the bidder can demonstrate that the alleged irregularity was the reason why the bid could not be submitted);

d. from individuals or entities that have not been prejudiced by the alleged infringement;

e. relating to planned contract awards on single-source basis;

f. relating to a contract that has been awarded.

4.8 Procedure

4.8.1 Any supplier may submit an appeal against a decision on the grounds of Paragraph 4.7.

4.8.2 Appeals shall only be receivable insofar as appellants exhausted all legal recourses under the relevant NSPA Operating Instruction.

4.8.3 Appeals shall be submitted to the Board at ARB-Secretariat@nspa.nato.int and copy the Competition Advocate at competition.advocate@nspa.nato.int.

4.8.4 Appeals concerning pre-award disputes shall not be receivable unless the Secretariat of the Board receives it in its email account within seven calendar days from the date of the notification of the Competition Advocate's decision. Appeals concerning allegations of sanctionable practices pursuant to Paragraph 5.1 of Reference F shall not be receivable unless the Secretariat of the Board receives it within 30 calendar days from the date of the notification of the Competition Advocate's decision.

4.8.5 The appeal must be accompanied by a proof of payment of applicable fees set out in Appendix II. The Secretariat shall not register appeals that are not accompanied by a proof of payment. All fees paid by appellants are non-refundable.

4.8.6 An appeal must include all relevant documents and written submissions, including:

- a. the name and status of the appellant;
- b. the name of the appellant's authorised representative, if any;
- c. the decision being challenged, and a summary of the appeal not exceeding two pages;
- d. any relevant complaints that the appellant has submitted and the results thereof, which shall be accompanied by all underlying procurement-related documents, including the bidding instructions and the appellant's bid;
- e. the legal grounds on which the Appeal is based;
- f. all supporting evidence.

4.8.7 It is the responsibility of the appellant to present a complete case and to substantiate its claims to the extent necessary for the Board to conduct its review. All appeals shall be decided on the basis of the written submissions and evidence provided by the parties.

4.8.8 Appeals that are incomplete or unsubstantiated shall be summarily dismissed. The Board shall not request or invite the appellant to supplement or improve its appeal through the submission of additional evidence or arguments that ought to have been provided at the time of filing the appeal.

4.8.9 The Board shall not assume any inquisitorial or investigatory role nor provide guidance to appellants in preparing or completing their submissions. The responsibility for the content, completeness, and timeliness of an appeal rests solely with the appellant.

4.8.10 All documents and arguments that have not been formally submitted by the appellant for review by the Competition Advocate pursuant to the relevant NSPA Operating Instruction cannot be submitted for the Board's review.

4.8.11 The Board shall not engage in *ex parte* communications with any party, save in exceptional circumstances such as those described in Paragraph 4.8.12 below.

4.8.12 The Board may, upon reasoned request by NSPA, authorise the restriction of specific evidence submitted to the Board from being accessed or reviewed by the other party where it determines that there is a reasonable basis to conclude that disclosure or review of such evidence could endanger the life, health, safety, or well-being of any person, or would constitute a breach of an undertaking or obligation binding upon NSPA. Should the Board decline such a request, NSPA shall retain the option to withdraw the evidence in question from the record.

4.8.13 The appeal process usually consists of two submissions (appeal and reply). If needed, the Board may request the parties to file additional submissions (rejoinder and surrejoinder).

4.8.14 In exceptional circumstances, before issuing its decision, the Board may seek through its Secretariat further information, including from persons with technical knowledge, or documents either from the appellant or from the Agency.

4.8.15 Should the Board receive multiple appeals arising from the same procurement procedure, the Board shall determine, at its discretion, the most appropriate manner and order in which to address the individual appeals. In cases of lowest price technically compliant procurements the Competition Advocate shall issue their Second Level review decisions simultaneously. Unless expressly agreed by NSPA, the receipt of more than one appeal arising from the same procurement process shall not impact the applicable timelines for the Board to issue its decision. The appellant(s) shall be informed by NSPA that, in accordance with the principle of award to the lowest-price technically compliant offer, a successful appeal may not result in the appellant being awarded the contract.

4.8.16 All matters that are not expressly provided for in these rules shall be dealt with by decision of the Board on the particular appeal.

4.9 Interim Measures

4.9.1 Appeals relating to allegations of unduly restrictive requirements and against Notifications of Planned Sole Source Award do not suspend the continuation of the solicitation process. Nevertheless, NSPA shall extend the closing date for submitting tenders or bids by 21 calendar days from the date NSPA has submitted its reply to allow the Board to review the appeal and make a final decision.

4.9.2 Upon receipt of an appeal relating to a determination of non-compliance, NSPA shall immediately suspend the decision to award the contract until the final determination by the Board.

4.9.3 If the Board does not issue its final decision within 21 calendar days from the date of receiving the appeal, NSPA may (but has no obligation to) proceed with the contract award.

4.9.4 An appeal against a debarment determination does not suspend the implementation of the debarment pending a final decision from the Board.

4.10 Powers to Summarily Dismiss Appeals

4.10.1 The Board shall summarily dismiss appeals that have not been received by its Secretariat within the time limits prescribed in Paragraph 4.8.4, unless NSPA expressly agrees to an extension of applicable time limits.

4.10.2 The Board shall summarily dismiss appeals over which it has no competence under Paragraph 4.7 above.

4.10.3 The Board may summarily dismiss appeals that are:

- a. incomplete, illegible, or incomprehensible;
- b. prepared in a language other than English or French. Supporting documents must be accompanied by an English translation. The Agency shall not bear any translation costs;
- c. manifestly unfounded, dilatory, or abusive.

4.10.4. The Board may only extend the appellant's deadline to submit an appeal with NSPA's consent.

4.11 Final Decision of the Board

4.11.1 The Board shall normally issue its final decisions within 21 calendar days from the date of receipt of NSPA's reply, or exceptionally, seven calendar days from the receipt of the surrejoinder as applicable. Where a decision cannot be issued within the time limits outlined above, the Board shall inform NSPA and the appellant of the reasons for the delay and provide a date on which a decision will be issued. If the Board does not issue its final decision within 21 calendar days from the date on which NSPA has submitted its reply, NSPA may, but has no obligation to, proceed with the contract award.

4.11.2 The Board shall provide written reasons in support of its final decision. The complainant or appellant shall be entitled to receive a copy of the decision within three working days of its release. The Board's decision shall contain the following sections: overview or summary, concise statement of relevant facts, issues to be determined, analysis, and conclusion.

4.12 Possible Remedies

The only remedies that may be awarded by the Board are those listed below. The Board cannot award material, moral, or punitive damages, nor can the Board order a party to compensate the other party's legal expenses.

4.12.1 If the Board determines that the complaint for unduly restrictive competition is well founded, the only remedy it can grant is an order directing NSPA to amend the Request for Proposals by removing unduly restrictive specifications or requirements and to re-advertise the Request for Proposals.

4.12.2 If the Board determines that the complaint for a determination of non-compliance is well founded, the only remedy it can grant is an order directing NSPA to re-evaluate the bid.

4.12.3 If the Board determines that NSPA erred in determining the sole source character of a requirement, the only remedy it can grant is an order directing NSPA to cancel the Notification of Planned Sole Source Awards and issue a competitive RFP.

4.12.4 If the Board determines that the appeal against a debarment determination is well founded, the only remedy it can grant is the supplier's reinstatement as an eligible supplier.

4.13 Finality of Decisions made by the Board

Decisions of the Board are final and shall not be subject appeal before any national or international jurisdiction.

4.14 Non-Applicability of the Appeal Procedure in Times of Crisis or War

In the event of war or crisis, the GM may temporarily suspend the application of this appeal procedure for either a specific appeal or for all appeals during a designated period. In this case, the challenged decision will be final.

Stacy A
CUMMINGS



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Date: 2025.12.18
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Stacy CUMMINGS
General Manager

APPENDIX I – DECLARATION OF IMPARTIALITY AND CONFIDENTIALITY

I, the undersigned, _____, have been appointed as a panel member of the Award Review and Debarment Board of NSPA to review the appeal received on __/__/__ from _____ in relation to one of the following four proceedings (please check off one of the following four options):

- ☐ unduly restrictive requirements;
- ☐ determination of commercial and/or technical non-compliance;
- ☐ determination of sole source;
- ☐ debarment determination.

I hereby undertake that for any part/role that I will take as a member of the panel and during the full term of my appointment, I shall act with utmost care and apply the highest professional standards, in full impartiality and objectivity.

I confirm that I have no conflict of interests nor bias, whether actual or potential, with regard to any activity and shall prevent any such conflict of interests or bias from arising at any time in the course of my responsibilities as a member of the panel. I further undertake to re-assess and monitor my situation at all stages of my appointment to avoid any such conflict or bias.

I undertake to treat and keep in strict confidentiality any information given to or obtained by me in the course of or as a result of my assignment and to abide by all applicable rules on personal data protection.

Name

Signature

Date

APPENDIX II - ADVANCE DEPOSIT FOR AWARD REVIEW AND DEBARMENT BOARD

When submitting their appeal, any appellant shall submit a proof of deposit in the amount of EUR 30,000 on the following Bank Account:

Name of Account	:	NATO NSPA NAMSA POD ADM
International Bank Account Number (IBAN)	:	LU14 0019 1007 7845 4000
BIC/SWIFT	:	BCEELULL

When paying this deposit by bank transfer, the appellant shall ensure that its corporate name is visible, and shall mention in the communication: "Deposit for Award Review and Debarment Board".

